

## Sarnath Singh v. U.P. Power Corporation Ltd.

Allahabad High Court · Division Bench · 18 December 2019 · WRIT - C No. 41985 of 2019 · **Writ disposed; petitioner to appear before Executive Engineer with objections; speaking final order directed; coercive recovery stayed seven weeks; Section 127 appeal reserved.**

### HEADNOTE

Without quashing a demand letter or recovery citation, the Allahabad High Court directed the consumer to appear before the Executive Engineer with objections and evidence, required a speaking final order within four weeks, stayed coercive action for a limited period, and reserved an appeal under Section 127 of the Electricity Act, 2003 against that final order.

### FACTUAL SUMMARY

Sarnath Singh challenged before the Allahabad High Court a demand letter dated 2 August 2019 and a recovery citation (R.C. Form-36) dated 5 November 2019 issued by officers of U.P. Power Corporation Ltd. He alleged coercive recovery without opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the petitioner and the electricity department were heard. The Division Bench did not examine the bill or the citation on merits.

### HOLDING-UNITS

#### HOLDING-UNIT · EA2003::127

speaking-order-then-section-127-appeal

#### HOLDING

Without deciding the demand or recovery on merits, the Court directed the petitioner to appear on 6 January 2020 before the Executive Engineer with objections and evidence; required a speaking and reasoned final order within four weeks thereafter; stayed coercive action for seven weeks or until disposal of the objection, whichever earlier (vacated on default in filing); and held that if aggrieved by the final order the petitioner may appeal under Section 127 of the Electricity Act, 2003. Non-appearance on the date fixed would revive the recovery citation. The writ was disposed of.

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### PRINCIPLE TAGS

**alternative-remedy-relegation-section-127** After directing a first-instance speaking order on the consumer's objections, the Court reserved Section 127 of the Electricity Act, 2003 as the remedy against that final order and did not quash the demand or recovery citation on merits. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — WHETHER THE DEMAND LETTER AND RECOVERY CITATION VIOLATED THE U.P. ELECTRICITY SUPPLY CODE, 2005

Alleged by the petitioner; no Supply Code clause was examined. ¶ 1

#### NOT DECIDED — QUANTUM OR LEGALITY OF THE DEMAND ON MERITS

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